

NEW YORK STATE SUPREME COURT
COUNTY OF BRONX

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ELIJAH LYNNAH,

Plaintiff,

Index No.:

- against -

CITY OF NEW YORK, ERIC REYNOLDS,
RYAN HUGHES, and CARMELO QUILES,

SUMMONS

Venue is designated in
Bronx County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiff an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR §§ 503 and 504, as the plaintiff is a resident of Bronx County, which is also the county in which the events at issue occurred.

Dated: New York, New York
July 24, 2020

LUMER LAW GROUP
Attorneys for Plaintiff

By:



Michael Lumer, Esq.
233 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

Defendants' Addresses:

The City of New York
100 Church Street
New York, New York 10007

PO Eric Reynolds, Shield 8619
2121 Eastchester Road
Bronx, NY, 10461-2251

Sgt. Ryan Hughes, Tax: 922526
Intelligence Division
One Police Plaza
New York, New York 10038

Sgt. Carmelo Quiles, Tax: 940599
PSA 6
2770 Frederick Douglass Boulevard
New York, New York 10039

NEW YORK STATE SUPREME COURT
COUNTY OF BRONX

----- X

ELIJAH LYNAH,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, ERIC REYNOLDS,
RYAN HUGHES, and CARMELO QUILES,

Defendants.

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Plaintiff ELIJAH LYNAH, by his attorneys, the Lumer Law Group, hereby alleges upon information and belief as follows:

1. At all times hereinafter mentioned, plaintiff ELIJAH LYNAH, was an adult male resident of Bronx County, in the City and State of New York.
2. At all relevant times hereinafter mentioned, defendant City of New York (the “City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.
3. At all relevant times hereinafter mentioned, defendant ERIC REYNOLDS, Shield 8619, was employed by the City as a member of the NYPD. REYNOLDS is sued herein in his individual capacity.
4. At all relevant times hereinafter mentioned, defendant RYAN HUGHES, Tax 922526, was employed by the City as a member of the NYPD. HUGHES is sued herein in his individual capacity.

5. At all relevant times hereinafter mentioned, defendant CARMELO QUILES, Tax 940599, was employed by the City as a member of the NYPD. QUILES is sued herein in his individual capacity.

6. A Notice of Claim was timely served by the plaintiff upon the defendant City of New York.

7. The City of New York subsequently conducted an examination of the plaintiff pursuant to General Municipal Law §50-H.

8. At least thirty days have passed since service of plaintiff's Notice of Claim, and adjustment and payment thereof has been neglected or refused by the City of New York.

9. Plaintiff has complied with all obligations, requirements, and conditions precedent to commencing an action against New York City under New York law.

10. On October 11, 2017, at or around the early evening hours, plaintiff was lawfully operating a motor vehicle in the vicinity of Bronx Park East and Britton Street in Bronx County, when members of the NYPD directed him to pull over.

11. The vehicle stop was conducted at the defendants' direction.

12. The defendants instructed plaintiff to exit his vehicle. They then conducted a search of the vehicle.

13. Plaintiff was not free to leave at the time of, and following, the vehicle stop, and he was therefore seized.

14. The defendants seized plaintiff without lawful cause, and without any reasonable basis to believe the seizure was lawful.

15. Plaintiff calmly complied with the defendants' instructions.

16. The three defendants then arrested plaintiff, placed plaintiff in handcuffs and removed him from the scene to a local area NYPD station house.

17. At the time of his arrest, plaintiff had not engaged in, and was not engaging in any unlawful conduct, or any conduct that could reasonably be viewed as unlawful.

18. Despite the continuing absence of sufficient legal cause to justify the initial detention of plaintiff, much less his arrest, plaintiff was nonetheless arrested, handcuffed, and transported to a local NYPD station house, where he was jailed against his will for a period of time.

19. At no time was there probable cause for the plaintiff's arrest nor was there any reasonable basis for the individual defendants to believe that probable cause for plaintiff's arrest existed.

20. Plaintiff was eventually taken to Central Booking, where he remained jailed for a period of time.

21. While plaintiff was still in defendants' custody, the individual defendants completed arrest paperwork in which they falsely claimed that plaintiff knowingly and unlawfully, in part, possessed a handgun and cocaine, and otherwise was engaged in criminal conduct.

22. These allegations, both generally, and as later specifically communicated to prosecutors, was materially false and the individual defendants were aware at all times that the allegations were false.

23. The individual defendants either jointly participated in the creation of this arrest paperwork or were otherwise aware that the other individual defendant was creating or causing the creation of this paperwork.

24. The decision to arrest the plaintiff, the fabrication of allegations of criminal conduct and the surrounding circumstances, and the communication of the manufactured and otherwise materially inaccurate and misleading factual claims, were made jointly by the individual defendants, or with each other's knowledge and acquiescence, to justify plaintiff's unlawful arrest and persuade the Bronx County District Attorney's office ("BCDA") to commence plaintiff's criminal prosecution.

25. In fact, as each defendant understood would happen, and wanted to bring about, the arrest paperwork, replete with fabricated and falsified claims and misleading and incomplete statements of fact, was forwarded to the BCDA while plaintiff was in defendants' custody for the express purpose of causing the initiation of plaintiff's criminal prosecution.

26. To the extent that any individual defendant did not personally, affirmatively participate in said conduct, he was aware that such conduct was occurring and would continue to occur, and deliberately and consciously failed to intervene in such conduct, despite ample opportunity to do so.

27. The individual defendants are therefore each equally liable for the arrest of the plaintiff and the commencement of his prosecution, because of their personal actions and because of their deliberate failure to intervene in the other's unconstitutional conduct, and thus they were, at all relevant times herein, acting jointly and in concert.

28. Plaintiff was eventually arraigned on various weapons and narcotics charges on or about October 12, 2017, in Bronx County Criminal Court under docket number 2017BX039832 based on a criminal complaint sworn to by defendant REYNOLDS in which REYNOLDS claimed to have observed plaintiff in possession of a handgun, ammunition, and cocaine.

29. Plaintiff had not been in possession of these items and REYNOLDS' claims in this regard were false in all material respects.

30. The court set bail, which plaintiff could not afford to post.

31. Plaintiff was then transported to a DOC facility at Rikers Island, where he remained incarcerated through his prosecution.

32. The defendants continued to communicate with the BCDA for the purpose of obtaining plaintiff's indictment, during which time each defendant either communicated a materially falsified or misleading version of the events surrounding plaintiff's arrest, or knowingly failed to correct their fellow defendants' and colleagues' communications of materially false or misleading narratives to the BCDA.

33. As a result of the defendants' dishonesty, the BCDA was able to obtain indictment 2542-2017 on six weapons' charges and one narcotics offense.

34. The criminal prosecution of plaintiff continued to through trial in October 2019.

35. At no time from the plaintiff's arrest on October 11, 2017, through his criminal trial during the final of October 2019, did defendants advise the BCDA of their

prior false statements or otherwise inform the BCDA that the factual allegations they had individually and collectively communicated to the BCDA were false, inaccurate, or misleading.

36. On November 1, 2019, the jury returned a verdict acquitting plaintiff of all charges.

37. Plaintiff remained in DOC custody from the date of his arrest on October 11, 2017, through November 1, 2019.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983)

38. Plaintiff ELIJAH LYNAH repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

39. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

40. All of the aforementioned acts deprived plaintiff LYNAH of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

41. The acts complained of were carried out by the individual defendants in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New

York and the New York City Police Department, all under the supervision of ranking officers of said department.

42. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

43. The acts complained of deprived plaintiff LYNAH of his right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from seizure and arrest absent probable cause;
- c. to not be falsely imprisoned;
- d. to receive equal protection under the law; and,
- e. to be free from unwarranted and malicious criminal prosecution.

44. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment; Denial of a Fair Trial,
and Malicious Prosecution Pursuant to 42 USC §1983)

45. Plaintiff ELIJAH LYNAH repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

46. The individual defendants willfully and intentionally seized, arrested, and caused plaintiff to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

47. To the extent that either individual defendant did not affirmatively seize or place plaintiff under arrest, that defendant was aware that plaintiff's constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

48. As a result of his unlawful arrest by the defendants, plaintiff was imprisoned and deprived of his liberty.

49. Plaintiff was conscious of the deprivation of his liberty and did not consent to any such deprivation.

50. The individual defendants fabricated and withheld material evidence, and misled prosecutors in order to manufacture a justification for the initial seizure of plaintiff, as well as justify their subsequent decision to arrest him despite the absence probable cause.

51. The individual defendants forwarded the fabricated evidence to the BCDA or otherwise knowingly caused the BCDA to be materially misled as to the true circumstances and facts surrounding the seizure and arrest of plaintiff, did so with the intent of bringing about and sustaining plaintiff's criminal prosecution despite their knowledge that there was no probable cause to justify said prosecution, and in so doing caused plaintiff to be deprived of his liberty.

52. To the extent that either individual defendant did not affirmatively seize or place plaintiff under arrest, or fabricate evidence or engage in direct communications with the BCDA as alleged herein, said defendant was aware that the other individual defendant was or would be engaged in this unconstitutional conduct, and that plaintiff's constitutional rights were being and would continue to be violated, and yet failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

53. The individual defendants, individually and collectively, subjected plaintiff to (i) false arrest and imprisonment, (ii) denial of due process and the right to a fair trial through the fabrication of evidence, and (iii) malicious prosecution, thereby violating, or aiding and abetting in the violation of, plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

54. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, lost earnings, imprisonment and the deprivation of liberty, as well as the loss of his constitutional rights.

THIRD CAUSE OF ACTION

(State Law Claims for False Imprisonment, Malicious Prosecution,
and Denial of Fair Trial against All Defendants)

55. Plaintiff ELIJAH LYNNAH repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

56. Plaintiff repeats the preceding allegations as though stated fully herein.

57. Plaintiff was subjected to false imprisonment when he was intentionally, willfully, maliciously, and/or with reckless disregard, imprisoned for the duration of his criminal prosecution as a direct result of the individual defendants' unconstitutional conduct.

58. Plaintiff was conscious of his confinement and did not consent to it.

59. Plaintiff was subjected to malicious prosecution and the denial of due process and his right to a fair trial when he was wrongly prosecuted without probable cause on the basis of evidence and/or testimony fabricated by the individual defendants.

60. The municipal defendant, the City of New York, is vicariously liable to plaintiff for the acts of the individual defendants who were at all relevant times herein acting within the scope of their employment as subordinate officers and agents of the municipal defendant.

61. The individual defendants are liable to plaintiff under state law, for (i) false arrest and imprisonment, (ii) malicious prosecution, and (iii) denial of due process and the right to a fair trial.

62. The municipal defendant is vicariously liable to plaintiff for the aforementioned bad acts of its agents and under state law, including (i) false imprisonment, (ii) malicious prosecution, and (iii) denial of due process and the right to a fair trial.

63. By reason thereof, the individual and municipal defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, lost earnings, imprisonment and the deprivation of liberty, as well as the loss of his constitutional rights.

WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each individual defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
July 24, 2020

LUMER LAW GROUP
Attorneys for Plaintiff

By:



Michael Lumer, Esq.
233 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

VERIFICATION

Michael Lumer, affirms under penalty of perjury that:

1. I am the attorney for the plaintiff in the within action, am duly admitted to practice law before the Courts of New York State, and make this verification pursuant to CPLR 2106 and further pursuant to CPLR 3020(d)(3).
2. This verification is based on extensive interviews with plaintiff and a review of the files and records in my possession.
3. I have read and know the contents of the foregoing Complaint, and verify the same are true based on my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.
4. The plaintiff does not reside in the same county wherein my office is located and therefore I make this verification on plaintiff's behalf pursuant to CPLR 3020(d)(3).

Dated: New York, New York
July 24, 2020



Michael Lumer